Agenda Summary Mir

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Approved at

MINUTES OF A CITY COUNCIL MEETING

March 25, 2025

1:30 PM

Mayor Keeley opened the City Council Closed Session at 1:31 p.m. in a public meeting via Zoom and in Council Chambers, for the purpose of announcing the agenda, and receiving public testimony.

Roll Call

Present: Councilmembers Trigueiro, Brunner, Newsome, Golder, O'Hara; Vice Mayor Kalantari-Johnson; Mayor Keeley.

Absent: None.

Staff: City Manager M. Huffaker, City Attorney T. Condotti, Deputy City Clerk Administrator J. Wood, City Clerk Administrator B. Bush.

Statements of Disqualification - None.

Public Comment

Mayor Keeley opened the public comment period at 1:32 p.m. There were no speakers. Mayor Keeley closed the public comment period at 1:32 p.m., at which time the meeting was closed to the public and Council adjourned to the Courtyard Conference Room.

Closed Session

1. Conference with Legal Counsel - Liability Claims (Government Code §54956.95)

   1) Claimant: Staci Pagaling
   2) Claimant: Francis David Magnuson
   3) Claimant: John Clifford Edwards

   Claim against the City of Santa Cruz

Council received a status report, took up under agenda item 16, and no reportable action was taken.

2. Real Property Negotiations (Government Code §54956.8)

   Property: Approximately 8.15 acres located on Mount Hermon Road in Scotts Valley, CA
   APNs: 022-721-07, 022-721-08, 022-721-09
   Owner: City of Santa Cruz
   City Negotiator: Bonnie Lipscomb
   Negotiating Parties: City of Santa Cruz and City of Scotts Valley
   Under Negotiation: Price, terms of payment, or both

Council received a status report from the City Negotiator, and no reportable action was taken.

3. Conference with Labor Negotiators (Government Code §54957.6)

   SEIU Temporary Employees
   SEIU Service Employees
   Mid Managers, OE3
   Supervisors, OE3
   Fire Management
   Fire, IAFF
   Police Management
   Police Officers Association
   Executives

   City Negotiator - Sara De Leon

Council received a status report from the City Negotiator, and no reportable action was taken.

City of Santa Cruz
809 Center Street
Santa Cruz, California 95060

MINUTES OF A CITY COUNCIL MEETING
March 25, 2025

2:30 PM

Call to Order – Mayor Keeley called the meeting to order at 2:32 p.m. in Council Chambers.

Roll Call

Present: Councilmembers Trigueiro, Brunner, Newsome, Golder, O'Hara; Vice Mayor Kalantari-Johnson; Mayor Keeley.

Absent: None.

Staff: City Manager M. Huffaker, Assistant City Manager M. Templeton, City Attorney T. Condotti, Director of Public Works N. Nguyen, Director of Planning and Community Development L. Butler, Chief of Fire R. Oatey, Director of Economic Development and Housing B. Lipscomb, Director of Finance E. Cabell, Director of Parks and Recreation T. Elliot, Director of Information Technology K. Morgan (via Zoom), Assistant Director of Public Works/City Engineer K. Crossley, Purchasing Manager E. Millwee, Senior Professional Engineer K. Stewart, Deputy City Clerk Administrator J. Wood, City Clerk Administrator B. Bush.

Oral Communications Announcement - The Mayor provided a brief announcement about Oral Communications.

Oral Communications

At 2:33 p.m. Mayor Keeley opened Oral Communications for members of the public who wished to speak regarding items not listed on the City Council agenda.

Unidentified person spoke regarding vote lobbying.

James Ewing Whitman spoke regarding the Covid-19 pandemic, meeting former Chief of Police Andy Mills five years ago, and frequency weapons.

Unhae Langis spoke regarding an upcoming UCSC protest supporting Palestine liberation.

Oral Communications (continued)

Bob Russell spoke in opposition to the state's plan for the Seabright overlook.

At 2:42 p.m. Mayor Keeley closed Oral Communications.

Presentations

4. Mayoral Proclamation Declaring April as Arts and Culture Month

Councilmember Brunner read from and presented a proclamation to Jim Brown, Director of the Arts Council Santa Cruz County, declaring April as Arts and Culture Month.

5. Mayoral Proclamation Declaring March as Procurement Month

Councilmember O'Hara read from and presented a proclamation to the City of Santa Cruz Finance staff declaring March as Procurement Month. Purchasing Manager E. Millwee spoke.

6. Mayoral Proclamation Declaring March 30, 2025, as Eid al-Fitr Day

Councilmember Trigueiro read from a proclamation declaring March 30, 2025 as Eid al-Fitr Day and presented it to members of the Islamic Center of Santa Cruz.

7. Outgoing Delegation to Shingu

Linda Snook, Acting Chair of the Sister Cities Shingu Subcommittee, spoke and introduced the youth delegates who are traveling to visit the Sister City of Shingu, Japan.

Presiding Officer's Announcements

Statements of Disqualification – Councilmember Brunner announced she will be recusing herself from items 25 and 26 in an abundance of caution as they relate to her employer.

Additions and Deletions – None.

City Attorney Report on Closed Session – See page 7859 for the report.

Council Meeting Calendar

8. The City Council reviewed and did not revise the meeting calendar attached to the agenda.

Consent Agenda

Councilmember O'Hara made a comment on item 12 and pulled item 18 for further discussion.

Director of Economic Development and Housing B. Lipscomb responded to Council questions regarding item 12.

Vice Mayor Kalantari-Johnson made a comment on items 12 and 19.

Councilmember Newsome made a comment on items 12, 13, and 14.

Councilmember Brunner made a comment on item 20.

Councilmember Trigueiro made a comment on items 12, 13, 20, and 23.

Mayor Keeley opened the public comment period. The following people spoke:

James Ewing-Whitman made a comment regarding items 10, 20, 22, and 23.

Garrett made a comment on item 12.

Mayor Keeley closed the public comment period.

MOTION: Councilmember O'Hara moved, seconded by Councilmember Newsome, to approve the remaining Consent Agenda.

Mayor Keeley made a comment on item 23.

ACTION: The motion carried unanimously with the following vote.

AYES:	Councilmembers Trigueiro, Brunner, Newsome, Golder, O'Hara; Vice Mayor Kalantari-Johnson; Mayor Keeley.
NOES:	None.
ABSENT:	None.
DISQUALIFIED:	None.

Consent Agenda (continued)

9. Resolution Extending the Emergency Declarations in Connection with the 2022/2023 Winter Storms and 2023/2024 Winter Storms (CA/CM)

   LOCATION: Citywide

   Resolution No. NS-30,452 was adopted extending by sixty days the Local Emergency Declarations in connection with the 2022/2023 and 2023/2024 winter storms.

10. Minutes of the March 11, 2025 City Council Meeting (CC)

    LOCATION: None

Motion carried to approve as submitted.

11. Nomination for Reappointment of Carol Berg to the Housing Authority Board of Commissioners (CC)

LOCATION: Countywide

Motion carried to nominate Carol Berg for reappointment to the County Housing Authority Board of Commissioners with a term expiring on May 21, 2029.

12. Memorandum of Understanding between the City of Santa Cruz, Digital NEST, and Santa Cruz Works for the Implementation of a Tech Apprenticeship Workforce Development Program (EDH)

LOCATION: Citywide

Motion carried to authorize the City Manager, or designee, to execute the Memorandum of Understanding between the City of Santa Cruz, Digital NEST and Santa Cruz Works for the implementation of a tech apprenticeship workforce development program with funding awarded from the Affordable Housing and Sustainable Communities Program.

Staff Direction:
Councilmember Trigueiro: Include metrics on the number of youths that are served, specifically Santa Cruz youths, and provide a program evaluation.

Consent Agenda (continued)

13. Purchase Sale Agreement Between the City of Santa Cruz and the City of Scotts Valley for the City-owned Property Located at the Northwest Corner of Mount Hermon Road and Kings Village Road in the City of Scotts Valley, aka Skypark, APNs 022-721-07, 022-721-08, and 022-721-09 (EDH)

Location: None

Resolution No. NS-30,453 was adopted authorizing and directing the City Manager, or designee, to execute a Purchase Sale Agreement, along with modifications of a non-substantive or conforming nature, between the City of Santa Cruz and the City of Scotts Valley for the City of Santa Cruz-owned property located at the Northwest Corner of Mount Hermon Road and Kings Village Road in the City of Scotts Valley, in a form to be approved by the City Attorney, and to take any further actions and execute any other related documents necessary to conclude the sale.

14. Second Supplement to the Amended and Restated Joint Exercise of Powers Agreement for the Santa Cruz Public Libraries Facilities Financing Authority (EDH/CM)

LOCATION: District 4

Motion carried to approve the Second Supplement to the Amended and Restated Joint Exercise of Powers Agreement (JPA) for the Santa Cruz Public Libraries Facilities Financing Authority (LFFA) and authorize the City Manager, or designee, to execute the supplement agreement and/or any associated documents.

15. Award Contracts for Aggregate Materials and Road Maintenance Materials (FN)

LOCATION: Citywide

Motion carried to award contracts for the citywide purchase of on-call Aggregate Materials and Road Maintenance Materials to Graniterock Company, Watsonville, California, Rapid Trans LLC., Oakland, California and Green Dream International, Erie, Pennsylvania in the amount not to exceed $2.3 million over five years and to authorize the City Manager to execute an agreement in a form approved by the City Attorney with Graniterock Company, Watsonville, California, Rapid Trans LLC., Oakland, California and Green Dream International, Erie, Pennsylvania.

Consent Agenda (continued)

16. Liability Claims Filed Against the City of Santa Cruz (FN)

LOCATION: None

Motion carried to reject the liability claims of 1) Staci Pagaling, 2) Francis David Magnuson, and 3) John Clifford Edwards, based on staff recommendation.

17. Annual Housing Element and General Plan Progress Report (PL)

LOCATION: Citywide

Motion carried to accept the 2024 General Plan and Housing Element Annual Progress Reports, and direct staff to submit the reports to the Governor's Office of Planning and Research and the California Department of Housing and Community Development.

18. Museum of Natural History Building Permit and Application Fee Waivers (PR)

LOCATION: District 2

Councilmember O'Hara spoke.

Mayor Keeley opened the public comment period. The following person spoke.

Felicia Von Stolk

Mayor Keeley closed the public comment period.

MOTION: Councilmember O'Hara moved, seconded by Vice Mayor Kalantari-Johnson, to :

- Waive land use application fees charged through the City Planning Department in the amount of $17,140 and waive associated building permit fees at a not-to-exceed amount of $120,000 for the Santa Cruz Museum of Natural History project.

- Direct staff to develop a Council policy (or, if applicable, an ordinance) that allows for the waiver or reduction of application and permit fees for third-party partners investing in improvements to City-owned infrastructure. This policy should be consistent with State legislation and support projects that provide clear public benefit. Staff should return within four months with a proposed framework that ensures transparency, equity, and alignment with the City's strategic goals.

Consent Agenda (continued)

18. Museum of Natural History Building Permit and Application Fee Waivers (PR)
LOCATION: District 2 (continued)

ACTION: The motion carried unanimously with the following vote.

AYES:	Councilmembers Trigueiro, Brunner, Newsome, Golder, O'Hara; Vice Mayor Kalantari-Johnson; Mayor Keeley.
NOES:	None.
ABSENT:	None.
DISQUALIFIED:	None.

19. Downtown Intersection Improvements Plan Revisions, Environmental Determination: Statutory Exemption PRC 21080.25(b)(1-4) and Metro Transit Station Improvements Agreement (PW)

LOCATION: District 4

Motion carried to:

- Approve the revised concept striping plan for the Downtown Intersection Improvements (c401903) project along Front Street between Laurel Street and Soquel Avenue;

- Authorize the City Manager to enter into the Metro Transit Station Improvements Agreement with Metro and Downtown Santa Cruz Developer, LLC, including any amendments and related documents in accordance with the City building permit(s) in a form to be approved by City Attorney; and

- Approve the CEQA Determination that the Downtown Intersection Plan improvements qualify for a Statutory Exemption under PRC 21080.25(b)(1—4).

20. Rail Trail Segments 8 and 9 Budget Adjustment (PW)

LOCATION: Districts 2 and 4

Resolution No. NS-30,454 was adopted amending the FY 2025 budget to appropriate funds in the amount of $750,000 from Measure D to the Monterey Bay Sanctuary Scenic Trail (Rail Trail) Segments 8 and 9 (c401804).

Consent Agenda (continued)

21. Award Contract for Bergkamp Patching Truck - Budget Adjustment (PW)

LOCATION: Citywide

Motion carried to:

- Award a contract for purchase of a Bergkamp FP5 Flameless Patcher from Bergkamp Pavement Management Solutions (Salina, KS) in the amount of $217,305; and

- Adopt Resolution No. NS-30,455 amending the FY 2025 budget to appropriate funds budgeted in Fund 101 in the amount of $17,305 to the Street Maintenance & Rehabilitation Fund, Fund 317.

22. City of Santa Cruz and Soquel Creek Water District Intertie Mutual Aid Agreement (WT)

LOCATION: Citywide

Motion carried to:

- Authorize the City Manager to execute the agreement between the City of Santa Cruz and the Soquel Creek Water District, providing emergency water services between the two parties, upon the terms and conditions as set forth in the said agreement; and

- Approve the CEQA Determination.

23. Modifications to City Council Forest Management Policies for Water Department Watershed Lands (WT)

LOCATION: Citywide

Resolution No. NS-30,456 was adopted repealing City Council Policy 11.3 - Timber Harvests in Watershed Area and Preservation of Old Growth Trees, and replacing with City Council Policy 11.3 – Forest Management of Water Department Watershed Lands, which includes a) additional old growth tree characteristics that will facilitate their protection and b) the ability to commercialize forest products in alignment with c) the requirement to reinvest revenue from such commercialization into other Water Department watershed restoration work.

End Consent Agenda

Public Hearing

24. 2nd Reading and Final Adoption of Ordinance No. 2025-06 Sidewalk Vending Administrative Amendments. Applicant: City of Santa Cruz. CEQA: Exempt per 15061(b)(3). (PL)

LOCATION: Citywide

Mayor Keeley opened the public comment period. There were no speakers. Mayor Keeley closed the public comment period.

MOTION: Councilmember Golder moved, seconded by Vice Mayor Kalantari-Johnson, to adopt Ordinance No. 2025-06 acknowledging the California Environmental Quality Act (CEQA) exemption and amending Santa Cruz Municipal Code (SCMC) Chapter 5.82 ("Sidewalk Vending") to clarify the definition of an "Enforcement Official," to specify the time period within which a vendor may receive citations before a permit may be revoked, to reduce the number of citations resulting in impoundment from four to three, to clarify and update restricted vending times and locations, and to provide clearer distinctions between roaming and stationary vending locations.

ACTION: The motion carried unanimously with the following vote.

AYES:	Councilmembers Trigueiro, Brunner, Newsome, Golder, O'Hara; Vice Mayor Kalantari-Johnson; Mayor Keeley.
NOES:	None.
ABSENT:	None.
DISQUALIFIED:	None.

At this time, Councilmember Brunner left the dais.

General Business

25. Resolution of Intention to Form an Enhanced Infrastructure Financing District (EIFD); Establish the Santa Cruz EIFD Public Finance Authority; and Appointment of Members from the City Council to the EIFD Public Finance Authority - Budget Adjustment (EDH)

LOCATION: Citywide

Director of Economic Development and Housing B. Lipscomb introduced the item and responded to Council questions.

Joe Dieguez, Senior Vice President of Kosmont Companies, gave a presentation and responded to Council questions.

General Business (continued)

25. Resolution of Intention to Form an Enhanced Infrastructure Financing District (EIFD); Establish the Santa Cruz EIFD Public Finance Authority; and Appointment of Members from the City Council to the EIFD Public Finance Authority - Budget Adjustment (EDH) LOCATION: Citywide (continued)

Mayor Keeley opened the public comment period. The following person spoke.

Garrett

Mayor Keeley closed the public comment period.

MOTION: Councilmember Newsome moved, seconded by Vice Mayor Kalantari-Johnson, to:

- Adopt Resolution No. NS-30,457 declaring intention to establish the Santa Cruz Enhanced Infrastructure Financing District (EIFD) and establishing the Santa Cruz EIFD Public Financing Authority (PFA);

- Appoint Mayor Keeley, Vice Mayor Kalantari-Johnson, and the Councilmember representing the district who will have the majority of the funds collected by the EIFD members of the City Council to the Public Financing Authority Board, and appoint the Councilmember representing the district who will have the second greatest amount of funds collected by the EIFD as alternate Board member;

- Authorize the City Manager, or designee, to execute a contract amendment with Kosmont & Associates, Inc. dba, Kosmont Companies, in an amount not to exceed $53,154, with the total contract amount not to exceed $150,000, for supporting the implementation phase of the EIFD; and

- Adopt Resolution No. NS-30,458 amending the Fiscal Year 2025 budget to appropriate funds in the amount of $54,000 for the implementation phase of the EIFD.

ACTION: The motion carried with the following vote.

AYES:	Councilmembers Trigueiro, Newsome, Golder, O'Hara; Vice Mayor Kalantari-Johnson; Mayor Keeley.
NOES:	None.
ABSENT:	None.
DISQUALIFIED:	Councilmember Brunner.

At this time Council heard item 7 and Councilmember Brunner returned to the dais.

At this time Councilmember Brunner left the dais.

General Business (continued)

26. Santa Cruz Community Farmers' Market Interim Location and Initial Direction on Future Concept Plans for the Re-Use of the Existing Library Site – Budget Adjustment (EDH)

    LOCATION: District 4

Director of Economic Development and Housing B. Lipscomb gave a presentation and responded to Council questions.

Mayor Keeley opened the public comment period. The following people spoke.

Unidentified person
Unidentified person
Unidentified person
Nesh Dhillon
Lira Filippini

Mayor Keeley closed the public comment period.

MOTION: Vice Mayor Kalantari-Johnson moved, seconded by Councilmember Newsome, to:

1) Adopt Resolution No. NS-30,459 appropriating $250,000 from the Economic Development Trust Fund to fund site furnishings to activate Lot 16 for the Farmers' Market and $150,000 from the Infill and Infrastructure Grant approved budget to fund needed site infrastructure;

2) Choose Concept B, below, for re-use of the existing library site, and to the extent legally feasible, include a preference for affordable housing for City employees, seniors, and/or other subpopulations identified in need of affordable housing;

   Reduced rectangular building footprint with proportional housing and commercial/office space and a larger public plaza.

Number of Housing Units:	~102 units
Commercial/Office:	19,300 SF
Plaza Size:	.8 acre
Farmers' Market Stalls:	84 vendors

3) Direct staff to partner with developers that will contribute to the development of the public market space.

General Business (continued)

26. Santa Cruz Community Farmers' Market Interim Location and Initial Direction on Future Concept Plans for the Re-Use of the Existing Library Site - Budget Adjustment (EDH) LOCATION: District 4 (continued)

FRIENDLY AMENDMENT: Councilmember Golder requested to edit #2 as follows:

Choose Concept B, below, for re-use of the existing library site, and to the extent legally feasible, include a preference for affordable or workforce housing for city employees, seniors, and/or other sub populations identified in need of affordable or workforce housing.

Reduced rectangular building footprint with proportional housing and commercial/office space and a larger public plaza.

Number of Housing Units:	~102 units
Commercial/Office:	19,300 SF
Plaza Size:	.8 acre
Farmers' Market Stalls:	84 vendors

Vice Mayor Kalantari-Johnson and Councilmember Newsome accepted.

After further discussion, Councilmember the friendly amendment was modified as follows:

Choose Concept B, below, for re-use of the existing library site, and to the extent legally feasible, include a preference for affordable or workforce housing for city employees, seniors, and/or other sub populations identified in need of affordable or workforce housing, and for the design to be consistent with surrounding architecture of 809 Center Street.

Reduced rectangular building footprint with proportional housing and commercial/office space and a larger public plaza.

Number of Housing Units:	~102 units
Commercial/Office:	19,300 SF
Plaza Size:	.8 acre
Farmers' Market Stalls:	84 vendors

General Business (continued)

26. Santa Cruz Community Farmers' Market Interim Location and Initial Direction on Future Concept Plans for the Re-Use of the Existing Library Site - Budget Adjustment (EDH) LOCATION: District 4 (continued)

ACTION: The motion carried with the following vote.

AYES:	Councilmembers Trigueiro, Newsome, Golder, O'Hara; Vice Mayor Kalantari-Johnson; Mayor Keeley.
NOES:	None.
ABSENT:	None.
DISQUALIFIED:	Councilmember Brunner.

At this time, Councilmember Brunner returned to the dais.

General Business (continued)

27. User Charges for Wastewater Services – Proposed Five-Year Increase (PW)

LOCATION: Citywide

Assistant Director of Public Works/City Engineer K. Crossley introduced the item.

Erik Helgeson, Principal/Vice President with Bartle Wells Associates, and Senior Professional Engineer K. Stewart gave a presentation and responded to Council questions.

Director of Public Works N. Nguyen responded to Council questions.

Mayor Keeley opened the public comment period. The following person spoke.

Garrett

Mayor Keeley closed the public comment period.

MOTION: Councilmember Brunner moved, seconded by Councilmember Trigueiro, to :

- Set a Public Hearing on the proposed increase of Wastewater User Rates for June 10, 2025;
- Approve mailing of written notices, including Spanish instruction, to Wastewater user addresses, customers who receive the bill, and property owners regarding the proposed increases and Public Hearing;
- Highlight any options of exemptions or financial support, such as the Utility Customer Assistance Program (UCAP), in the written notices, City website, and the Public Hearing; and
- Update the Wastewater capacity charges.

ACTION: The motion carried unanimously with the following vote.

AYES:	Councilmembers Trigueiro, Brunner, Newsome, Golder, O'Hara; Vice Mayor Kalantari-Johnson; Mayor Keeley.
NOES:	None.
ABSENT:	None.
DISQUALIFIED:	None.

Adjournment – Councilmember Golder moved, seconded by Councilmember Brunner, to adjourn. By consensus City Council adjourned at 6:07 p.m.

RESPECTFULLY SUBMITTED: ss/Julia Wood, Deputy City Clerk Administrator,
ATTEST: ss/Bonnie Bush, City Clerk Administrator, APPROVED: ss/Fred Keeley, Mayor.

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